

		opposing party will result from setting aside the default and letting the case go to trial on the merits, “very slight evidence will be required to justify a court in setting aside the default.” (Elston at 233 (internal quotes omitted); Fasuyi at 696.) “Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails.” (Elston at 235.) Here, Defendants presented evidence that they were in discussions with Plaintiff’s counsel regarding the appropriate venue for this action when their defaults were taken. (Gauth Decl. ¶¶2-3.) Plaintiff’s counsel ultimately agreed that venue is not proper in Orange County. (Id. at ¶ 4.) Counsel for Plaintiff and counsel for Defendants have each submitted stipulations to the Court which seek to vacate the defaults and transfer venue to Los Angeles County Superior Court; however, both stipulations have been rejected by the clerk due to formatting issues. (Id. at ¶¶ 4-5.) The motion was filed within six months of the defaults, and Defendants have submitted a proposed Answer with their motion. Accordingly, the motion to set aside defaults is GRANTED. Defendant shall file their Answer within 10 days. Moving party to give notice.
103	Im vs. Ken Hotels & Resorts Holdings LTD 25-01481737	Motion to Strike Portions of Complaint Defendant Ken Hotels & Resorts Holdings, Ltd. (“Defendant”) moves to strike the claims for punitive damages, attorney fees, and injunctive relief/abatement set forth in plaintiffs Jonathan Im, Angel Dimas, Genesis Camarena, and Alexis Lima’s (“Plaintiffs”) Complaint. The Court may, on motion by a party, strike out any irrelevant, false, or improper matter inserted in any

		pleading, or any part that is not filed in conformity with the laws of this state. (Code. Civ. Proc., § 436.) As with a demurrer, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (Code. Civ. Proc., § 437(a).) Allegations are assumed to be true. (Blakemore v. Superior Court (2005) 129 Cal.App.4th 36, 53.) Defendant contends that the claim for punitive damages is unsupported by any facts. Defendant argues that the allegation that Defendant was on constructive or actual notice of the bed bug infestation in light of numerous guest complaints cannot support the claim because the sources of those complaints are unspecified, unidentified, and unsubstantiated. Defendant further argues that the allegations are based on unsubstantiated allegations in another legal proceeding filed by Plaintiffs’ counsel and Plaintiffs have no personal knowledge of any circumstances that warrant a request for punitive damages. To support exemplary damages, the complaint must allege facts of defendant’s oppression, fraud, or malice, as required by Civil Code section 3294. (Civil Code § 3294(a); College Hospital Inc. v. Superior Court (1994) 8 Cal. 4th 704, 721; Turman v. Turning Point of Central Calif., Inc. (2010) 191 Cal.App.4th 53, 63.) “Malice” is defined as conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (Civil Code § 3294(c)(1).) Plaintiffs allege that Defendant had actual and constructive notice that their room was contaminated with a bed bug infestation, as numerous guests had complained about bed bugs, and did not disclose the infestation or warn Plaintiffs of it, subjecting them to physical injuries such as bites, skin rashes, allergic reactions, and emotional distress. These allegations, accepted as true, are sufficient to support a claim for
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		punitive damages. While the names of the guests who complained of bed bugs prior to Plaintiffs' stay are not alleged, as Defendant points out, the names and identities of the guests is not necessary at the pleading stage for Plaintiffs' allegations to demonstrate malice. Further, Plaintiffs' personal knowledge of the complaints of other guests is not required for the imposition of punitive damages against Defendant. The focus is on what Defendant knew or should have known and chose not to disclose, and whether or not Plaintiffs have personal knowledge of the complaints has no bearing on those issues. Next, Defendant argues that the claim for attorney fees, which is based on Civil Code section 1717 and Code of Civil Procedure section 1021.5, fails because Plaintiffs have not alleged the existence of any contract with an attorney fee provision and the claims asserted are private causes of action that will have no benefit to the general public as a whole. Upon motion, a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any. (Code Civ. Proc., § 1021.5.) Here, Plaintiffs allege that the failure to abate an ongoing severe bed bug infestation at the property created a public nuisance and the uninhabitable conditions are injurious to the health and safety of Plaintiffs and the public at large. Defendant has not demurred to the public nuisance cause of action to argue that it fails to state sufficient facts. Because Plaintiffs are seeking to abate what they allege to be a
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		public nuisance, their claim that they will be entitled to attorney fees under section 1021.5 if they prevail on their claims may stand. Lastly, Defendant argues that the prayer for injunctive relief is not supported by any of the claims set forth in the Complaint because those claims arise out of a hotel stay that has been concluded. Defendant ignores the fact that Plaintiffs have asserted a public nuisance claim, under which they may seek to enjoin the nuisance. (Code Civ. Proc., § 731.) In light of all the above, the Motion to Strike is DENIED. Defendant to give notice.
104	Halum vs. Jaguar Land Rover North America, LLC 25-01523324	Motion to Strike Portions of Complaint Defendant Jaguar Land Rover North America, LLC's ("Defendant") motion to strike portions of Complaint is GRANTED with 15 days leave to amend. This is an action for Violations of the Song-Beverly Consumer Warranty Act (CCP §1790, et seq.). Defendant moves for an order striking Prayer for Relief, Page 8, Section 5, line 18 of the Complaint, which reads "For civil penalty in the amount of two times Plaintiff's actual damages." Defendant contends that Plaintiff did not plead compliance with CCP §871.24 and is therefore not entitled to civil penalties. CCP §871.24 provides, in relevant part: (a) At least 30 days prior to the commencement of an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code, the consumer shall do all of the following: (1) Notify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ("VIN") of